

CHAPTER 7

An Act to make provision for the constitution of, and other matters relating to, joint committees of river boards and river purification boards on either side of the border in connection with the functions of those boards relating to the prevention of river pollution.

[7th December 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The responsible boards for any river situated partly in England and partly in Scotland may together constitute a joint committee which shall be charged with the duty of considering any matters in which the boards are jointly interested relating to the prevention of pollution of the river and of making to the boards recommendations on any such matter. Constitution etc. of joint committees.

(2) The constitution of a joint committee under this Act shall be such as the boards constituting it may agree, and the procedure of the committee and of any sub-committee thereof shall, subject to any directions given by those boards, be such as the committee may agree.

(3) A committee under this Act may appoint sub-committees, and any such sub-committee may include members who are not members of the committee, but at least two-thirds of the members of any such sub-committee shall be members of the committee.

(4) The expenses of a committee under this Act and of any sub-committee thereof shall be defrayed by the boards constituting the committee in such proportion as the boards may agree or as may, in default of agreement, be determined by the Secretary of State and the Minister of Housing and Local Government.

(5) So long as Part VI of the Local Government Act, 1948 11 & 12 Geo. 6. (which provides for the payment of allowances to members of local authorities and other bodies), applies to river boards and river purification boards, it shall apply also to committees under this Act. c. 26.

(6) Any increase attributable to this Act in the sums payable out of moneys provided by Parliament under Part I or Part II of the Local Government Act, 1948, shall be defrayed out of moneys so provided.

(7) For the purposes of this Act—

- (a) the expression “the responsible boards” means, in relation to any river, any river board in England or river purification board in Scotland in whose area any part of the river is situated; and
- (b) a river and its tributaries shall be regarded as a single river.

Short title.

2. This Act may be cited as the Border Rivers (Prevention of Pollution) Act, 1951.

CHAPTER 8

An Act to establish the Home Guard and for purposes connected therewith. [7th December 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Establishment
and status of
Home Guard.

1.—(1) There shall be established a force to be called the Home Guard consisting of such persons as may voluntarily undertake to serve therein without pay and be accepted for such service.

(2) Members of the Home Guard shall be members of the armed forces of the Crown; and every member of the Home Guard shall when on duty, and during any period during which the platoon or other part of the Home Guard to which he belongs is mustered, be subject to military law—

- (a) if serving on a commission in the Home Guard, as an officer; and
- (b) otherwise (and notwithstanding that he holds any rank or commission in any other of His Majesty's forces), as a soldier:

Provided that this subsection shall not render a member of the Home Guard liable to proceedings for an offence under section forty-one of the Army Act (which provides for the punishment under military law of civil offences).